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Case Number: 26PSCV00117 Hearing Date: August 6, 2026 Dept: 6

CASE

NAME: Western

University of Health Sciences v. All Persons Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Property Described in this Complaint, Which is Adverse to Plaintiff's Title or Creates Any Cloud on Plaintiff's Title

Plaintiff's

Motion for Order Authorizing Service of Summons by Publication

TENTATIVE

RULING

The Court GRANTS Plaintiff's Motion for Order Authorizing Service of Summons by Publication.

BACKGROUND

This is a quiet title action. On January 12, 2026, plaintiff Western University of Health Sciences (Plaintiff) filed this action against defendants All Persons Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Property Described in this Complaint, Which is Adverse to Plaintiff's Title or Creates Any Cloud on Plaintiff's Title, alleging cause the sole cause of action for quiet title.

On April 1, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against All Persons Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the

Property Described in this Complaint, Which is Adverse to Plaintiff's Title or Creates Any Cloud on Plaintiff's Title, Douglas Bryan, Lucinda Bourne, Russell Bryan, Katherine Bryan, Karen Donato, Sarah Roumas, Laura Jenks Robinson, Jacqueline Wender, Nicole Bryan Byrd, Hilary Bryan, Greyson Bryan, Shelley Bryan, Leslie Bryan, Scott Bryan, Wendy Bryan, and Jason Bryan (collectively, Defendants), alleging the sole cause of action for quiet title. On June 2, 2026, Plaintiff dismissed Defendants Shelley Bryan, Douglas Bryan, Katherine Bryan, Scott Bryan, and Russell Bryan without prejudice.

On July 1, 2026, Plaintiff moved for an order authorizing service of summons by publication.

LEGAL STANDARD

(a)

A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either:

(1)

A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action.

(2)

The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property.

(Code Civ.
Proc., § 415.50, subd. (a).)

(b) If

upon affidavit it appears to the satisfaction of the court that the plaintiff has used reasonable diligence to ascertain the identity and residence of and to serve summons on the persons named as unknown defendants and persons joined as testate or intestate successors of a person known or believed to be dead, the

court shall order service by publication pursuant to Section 415.50 and the provisions of this article. The court may, in its discretion, appoint a referee to investigate whether the plaintiff has used reasonable diligence to ascertain the identity and residence of persons sought to be served by publication, and the court may rely on the report of the referee instead of the affidavit of the plaintiff in making the order for service by publication.

(Code Civ.
Proc., § 763.010, subd. (b).)

DISCUSSION

Plaintiff seeks to serve Defendants Lucinda Bourne, Jason Bryan, Leslie Bryan, Wendy Bryan, and Laura Jenks Robinson on the grounds that they cannot with reasonable diligence be located and served in any other manner specified by the Code of Civil Procedure and that a cause of action exists against them. Plaintiff represents that, following the Court's prior order, it dismissed deceased Bryan Family heirs and effected service on other family members through Notices and Acknowledgment of Receipt, leaving only these five unserved. As to four of them, Plaintiff states that the only available contact information is an email address, that counsel emailed each a Notice and Acknowledgment of Receipt on May 28, 2026, and that none was returned. As to Lucinda Bourne, Plaintiff states it has no email or mailing address, that cooperating relatives cannot confirm she is alive, and that counsel's single attempt to reach her at an international telephone number believed to be in Portugal was unsuccessful. Plaintiff argues these efforts constitute reasonable diligence and that, because this is a quiet title action in which the defendants claim or may claim an interest in the subject real property, the statutory predicate for publication under Code of Civil Procedure § 415.50, subdivision (a)(2), is satisfied.

The Court finds Plaintiff has sufficiently demonstrated reasonable diligence in attempting to effect service on Defendants Lucinda Bourne, Jason Bryan, Leslie Bryan, Wendy Bryan, and Laura Jenks Robinson. (See Code Civ. Proc., § 415.50.)

Based on the foregoing, the Court GRANTS the Motion.

CONCLUSION

The Court GRANTS Plaintiff's Motion for Order Authorizing Service of Summons by Publication.